

25NNCV07357 25NNCV07357

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Case Number: 25NNCV07357 Hearing Date: September 22, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO COMPEL FURTHER REQUEST FOR PRODUCTION, SET ONE

I. INTRODUCTION

On October 15, 2025, Plaintiff Arman Petrosyan ("Plaintiff") filed the instant action against Defendants Paco Arroyo, Maria Yolanda Arroyo, Shane Demirjian, Karlyle Residential Multi Properties, LLC, and Does 1 through 50, alleging causes of action for (1) premises liability and (2) negligence.

On July 23, 2026, Plaintiff filed the instant motion to compel further responses to Requests for Production of Documents, Set One, from Defendant Karlyle Residential Multi Properties, LLC ("Defendant"). On August 17, 2026, Defendant filed an opposition. On August 21, 2026, Plaintiff filed a reply

II. LEGAL STANDARD

A motion to compel further responses to a demand for inspection or production of documents ("RFP") may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (Code Civ. Proc., § 2031.310(c).)

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

An unverified response is tantamount to no response at all. (See *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) However, objections to interrogatories and requests for production are not required to be verified because "objections are legal conclusions interposed by counsel, not factual assertions by a party." (*Blue Ridge Insurance Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 345.)

III. ANALYSIS

Plaintiff moves to compel further responses to RFP Nos. 3, 4, 5, 6, 7, 9, 10, 12, 16, 19, 21, 22, 25, 27, 28, 29, 31, 32, 34, and 35.

As to RFPs Nos. 3, 4, 5, 6, 7, 9, 10, 11, 12, 13, 15, 16, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 32, 33, 34, 35, Defendant generally represents that "Responding Party has conducted a diligent search and reasonable inquiry and has no responsive documents in its possession, custody or control as such documents have never been within its possession, custody or control." Plaintiff argues that these responses do not comply with Code of Civil Procedure section 2031.230 because they do not specify the reason for Defendant's inability to comply or identify any person or organization known or believed to possess the requested documents. (Motion, pp. 8-10.)

Code of Civil Procedure section 2031.230 provides:

"A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item."

Here, the Court agrees that Defendant's responses do not fully comply with section 2031.230. To the extent Defendant represents that responsive documents "do not exist," the responses do not specify whether the documents never existed or were destroyed, lost, misplaced, or stolen. Further, Defendant's responses do not identify any person or organization known or believed to have possession, custody, or control of the requested documents.

This requirement is particularly relevant here because Karlyle Residential Multi Properties, LLC is not the only defendant, and Defendant has identified co-defendant Shane Demirjian as the individual responsible for maintaining the premises. Thus, to the extent Defendant knows or believes that Demirjian or another person or entity has possession, custody, or control of responsive documents, Defendant must identify that person or entity as required by section 2031.230. If Defendant knows of no such person or entity, its further responses should so state.

Thus, further responses are warranted for Nos. 3, 4, 5, 6, 7, 9, 10, 12, 15, 24, 26, 27, 28, 29, 32, 33, 34, 35.

As to RFP No. 16, this is also deficient because Defendant states responsive documents "may have been lost, stolen or misplaced." Such an equivocal response does not specify which statutory ground applies. Although Defendant represents that it would inquire further and supplement its response, no supplemental response appears to have been served. (Reply, p. 2.)

Thus, the Court compels further response to No. 16.

As to RFP No. 31, Plaintiff seeks all applicable insurance policies, including excess policies. (SS, p. 43.) Defendant produced only the declarations page and argues the remainder of the policy is irrelevant and contains confidential premium information. (Opposition, pp 7-8.) Code of Civil Procedure section 2017.210 expressly permits discovery of the existence and contents of any insurance agreement under which an insurer may be liable to satisfy a judgment. Defendant therefore may not limit its production to the declarations page. To the extent the policy contains confidential premium information, such information may be redacted. Defendant shall produce the complete responsive policy or provide a code-complaint verified response if no such additional policy exists.

Thus, a further code compliant response is warranted for No. 31.

IV. CONCLUSION & ORDER

The Court GRANTS Plaintiff's motion to compel further responses to RFP, Set One in its entirety. Defendant shall serve verified code-complaint responses and produce responsive documents within 20 days' notice of this order.

Plaintiff is to give notice.

Dated: September 22, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT